

Virendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 20 March 2018 · WRIT - C No. - 10135 of 2018 · **Writ allowed; demand notice quashed; fresh assessment after objections.**

HEADNOTE

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 that neither specifies a date and time for hearing nor discloses the basis of the assessed amount does not afford the opportunity the Code requires. Demand of Rs.55,633 quashed; final assessment to be completed within six weeks after considering objections, with reasons, in the light of *Ashok Kumar*, 2008(6) ADJ 660 (DB).

FACTUAL SUMMARY

Virendra Singh challenged a demand notice dated 8 January 2018 for Rs.55,633 issued in his name. He contended that he never received the provisional assessment notice, could not file a reply, and that the distribution licensee treated the assessment as final and issued a recovery certificate. Counsel undertook to submit objections within two weeks and argued that Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005 required the notice itself to fix a date for hearing so that the consumer could appear.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) requires the provisional assessment notice itself to specify the date and time for hearing; a notice that omits that date does not afford the opportunity the Code provides. ¶ 4-8
2. A provisional assessment notice that does not disclose the basis of the amount assessed is not in accordance with the Supply Code and will not sustain the subsequent demand. ¶ 7-9

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis

HOLDING

A provisional assessment notice under Clause 6.8(b) must specify the date and time for hearing and disclose the basis of the assessed amount. A notice that does neither does not afford the opportunity contemplated by Clause 6.8(b). The demand dated 08.01.2018 is quashed; final assessment shall be made within six weeks after considering the consumer's objections, with reasons meeting those objections, in the light of *Ashok Kumar v. State of U.P.*, 2008(6) ADJ 660 (DB).

¶ 5-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM AND MERITS OF THE RS.55,633 ASSESSMENT

Demand quashed for a defective provisional assessment notice; final assessment remitted to be made after considering objections.

¶ 9

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008(6) ADJ 660 (DB)			6	Referred

